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A push for safer Skittles: Ban on 'toxic' food additives heads to California Gov. Gavin Newsom's desk

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A ban on several food additives found in popular snacks, including Skittles, passed its final vote in the California Legislature on Tuesday, sending the bill to the desk of Gov. Gavin Newsom.

The California Food Safety Act — the first of its kind in the country — would ban the manufacture, sale or distribution of brominated vegetable oil, potassium bromate, propylparaben and red dye No. 3.

The first version of the bill also proposed a ban on titanium dioxide, but the substance was not included in the version that passed the state Senate by a 33-3 vote on Monday.

The bill, introduced by Assemblyman Jesse Gabriel, D-Woodland Hills, passed a final procedural vote Tuesday back in the Assembly on its way to the governor.

If signed, the law would take effect on Jan. 1, 2027, and impose fines of up to $10,000 for violations.

"Today's bipartisan vote marks a huge step forward in our effort to protect children and families in California from dangerous and toxic chemicals in our food supply," Gabriel said in a release. "It's unacceptable that the U.S. is so far behind the rest of the world when it comes to food safety."

The bill aims to make foods in California safer. But it is not intended to ban foods such as Skittles, Gabriel said, so Californians probably do not need to worry that the colorful confections will disappear from store shelves.

"What we're really trying to get them to do is to change their recipes," Gabriel told The Times in March. "All of these are nonessential ingredients.

"I love Skittles. I love Wild Berry Skittles. I eat them all the time," Gabriel said. "I would vote against a bill to ban Skittles."

Gabriel noted that many of the chemicals included in the bill had already been banned in other countries, with manufacturers using alternative substances.

"I think the overwhelming likelihood of what's going to happen would be that they would make minor modifications to their recipes," Gabriel said.

The bill garnered some furor online but also support from actor and former California Gov. Arnold Schwarzenegger.

"I'm proud of Assemblyman Jesse Gabriel for writing this bill," Schwarzenegger wrote this year in an edition of his Pump Club newsletter, "and for all of you who asked, I'm happy to support it.

"Things like this aren't partisan. They're common sense. It is worth repeating: one of these ingredients has been banned from lipstick since 1990 because it caused cancer in lab rats," Schwarzenegger said.

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